

ited form of relief than a civil penalty. The Government's contention that its § 1319(b) injunction action provides jurisdiction for incidental monetary relief without the necessity of a jury trial also fails, since equity courts may not enforce civil penalties, and the Government knew when it filed suit that relief would be limited primarily to civil penalties because petitioner had already sold most of the property at issue. The potential penalty of \$23 million could hardly be considered "incidental" to the modest equitable relief sought. Moreover, the Government was free to pursue its § 1319(b) claim independent of its § 1319(d) claim. By choosing to combine them, it preserved petitioner's right to a jury trial on the legal claim and all issues common to both claims, and cannot abridge that right by characterizing the legal claim as "incidental." Pp. 422-425.

2. The Seventh Amendment does not guarantee a jury trial to assess civil penalties under the Act. The fact that trial judges assess those penalties does not violate the Amendment, since assessment cannot be said to involve the substance of a common-law right to, nor a fundamental element of, a jury trial, as is necessary to implicate the Amendment. Congress has an unquestioned right to fix civil penalties, and may delegate that right to trial judges, particularly where, as here, highly discretionary calculations that take into account multiple factors are necessary. Pp. 425-427.

769 F. 2d 182, reversed and remanded.

BRENNAN, J., delivered the opinion of the Court, in which REHNQUIST, C. J., and WHITE, MARSHALL, BLACKMUN, POWELL, and O'CONNOR, JJ., joined, and in Parts I and II of which STEVENS and SCALIA, JJ., joined. SCALIA, J., filed an opinion concurring in part and dissenting in part, in which STEVENS, J., joined, *post*, p. 427.

Richard R. Nageotte argued the cause for petitioner. With him on the briefs was *E. Barrett Prettyman, Jr.*

Deputy Solicitor General Wallace argued the cause for the United States. With him on the brief were *Solicitor General Fried*, *Assistant Attorney General Habicht*, *Charles A. Rothfeld*, *Anne S. Almy*, and *Claire L. McGuire*.*

*Briefs of *amici curiae* urging reversal were filed for the Chamber of Commerce of the United States by *Herbert L. Fenster*, *Stanley W. Landfair*, and *Robin S. Conrad*; for the Virginia Trial Lawyers Association et al. by *Mary Lynn Tate*; and for the Washington Legal Foundation by *Daniel J. Popeo* and *Paul D. Kamenar*.

Robert H. Whaley and *Bryan P. Harnetiaux* filed a brief for the Washington State Trial Lawyers Association as *amicus curiae*.